

The Andhra Pradesh (Telangana Area) Abolition Of Whipping Act, 1956

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State of Andhra Pradesh - Act

The Andhra Pradesh (Telangana Area) Abolition Of Whipping Act, 1956

ANDHRA PRADESH

India

The Andhra Pradesh (Telangana Area) Abolition Of Whipping Act, 1956

Act 36 of 1956

Published in Gazette 36 on 5 September 1956

Assented to on 5 September 1956

Commenced on 5 September 1956

[This is the version of this document from 5 September 1956.]

[Note: The original publication document is not available and this content could not be verified.]

The Andhra Pradesh (Telangana Area) Abolition Of Whipping Act, 1956

[Act No. 36 of 1956]

[05th September, 1956]

An Act to provide for the abolition of whipping as a punishment by repealing the relevant provisions of the Hyderabad Penal Code, 1324 Fasli (V of 1324 Fasli) and amending the Andhra Pradesh (Telangana Area) Children Act, 1951 (Act XXXII of 1951).

Be it enacted in the Seventh Year of Our Republic as follows:

1.

Short title, extent and commencement

(1)
This Act may be called the Andhra Pradesh (Telangana Area) Abolition of Whipping Act, 1956.

(2)
It extends to the whole of the Telangana area of the State of Andhra Pradesh:

(3)
It shall come into force at once.

2.
Repeal of the provisions of the Hyderabad Penal Code, 1324 Fasli (V of 1324 Fasli) relating to whipping

(1)
The provisions of section 12 (so far as it prescribes whipping as a form of judicial punishment) and sections 21 to 23 (both inclusive) of the Hyderabad Penal Code, 1324 Fasli (V of 1324 Fasli) hereinafter in this section referred to as the said Code, are hereby repealed.

(2)
If at the commencement of this Act any sentence of whipping imposed upon an offender by a Court under the aforesaid provisions of the said Code has not been executed for any reason, whether wholly or partly, the offender shall be dealt within the manner provided in section 395 of the Code of Criminal Procedure, 1898, (Central Act V of 1898) as if that section had not been repealed.

3.
Amendment of the Andhra Pradesh (Telangana Area) Children Act, 1951

(1)
In the Andhra Pradesh (Telangana Area) Children Act, 1951 (Act XXXII of 1951) (hereinafter in this section referred to as the said Act) clause (b) of section 2 and clause (f) of sub-section (1) of section 29 shall be omitted.

(2)
If at the commencement of this Act any sentence of caning imposed upon an offender by a Court under clause (f) of sub-section (1) of section 29 of the said Act has not been executed for any reason, whether wholly or partly, the Court may, at its discretion, deal with the case in the manner provided in that section as if the said Clause (f) had never existed in sub-section (1) of that section.

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